

IN THE COURT OF THE XI ADDL. CITY CIVIL & SESSIONS JUDGE,
BENGALURU CITY (CCH-8)

PRESENT

SRI. B.DASARATHA, B.A., LL.B.,
XI Addl. City Civil & Sessions Judge,
Bengaluru City.

DATED THIS THE 6th DAY OF APRIL, 2026

Execution Case No.1055/2023

Decree-holder:

Sri. L.A.Krishnappa,
S/o. Late Anjanappa,
Aged about 73 years,
R/at Raghavendra Nilaya,
No.131, Laggere Main Road,
Bengaluru – 560 058.

(By Adv. Sri. A.Venkata Reddy)

Vs.

Judgment-debtor:

Sri. A.Narasimha Murthy,
S/o. Late Anantharamaiah,
Aged about 79 years,
Residing at No.7,
Behind Lakshminarayana Temple,
Settyhalli Village, Jalahalli Post,
Bengaluru – 560 015.

(By Adv. Indrani L)

Provision under which the application is filed	:	Section 151 of CPC
Relief sought for	:	Seeking direction to obtain the consent signature of the judgment-debtor for execution and registration of the sale deed
Date on which the application is filed	:	04.02.2026
Number of the application	:	I.A. No.3
Date on which the objections are filed by different opponents	:	Counsel for judgment-debtor has no objection to allow I.A. No.3.
Date on which orders were passed on the said application	:	06.04.2026
Stage of filing of IA	:	Execution of Sale Deed

ORDERS ON I.A. No.3

This application is filed by the decree-holder under Section 151 of CPC, seeking direction to permit/secure the signature of the judgment-debtor - Sri.A.Narasimha Murthy, as a consenting witness to the sale deed to be executed in pursuance of the decree passed in the present execution proceedings.

2. The Counsel for judgment-debtor has no objection to allow I.A. No.3.

3. Heard the arguments.

4. Now, the points that would arise for my consideration are :-

1. Whether the decree-holder has made out sufficient grounds to allow I.A. No.3 filed under Section 151 of CPC seeking direction to obtain the consent signature of the judgment-debtor for execution and registration of the sale deed?

2. What order?

5. My findings on the above points are as under:-

Point No.1: In the affirmative.

Point No.2: As per final order below for the following;

REASONS

6. **Point No.1:-** The records disclose that the present Execution Petition is filed for enforcement of the decree directing execution of sale deed in respect of land, measuring 1 acre in Sy.

No.77 of Shettyhalli Village, Yeshwanthpur Hobli, Bengaluru North Taluk, out of total extent of 2 acres. It is not in dispute that, the remaining 1 acre is retained by the judgment-debtor.

7. The decree-holder has placed on record the communication issued by the Sub-Registrar, Peenya, which clearly indicates that, due to technical constraints in the **Kaveri-2 portal**, the registration of sale deed for 1 acre alone is not being permitted since the 11-E sketch reflects the entire extent of 2 acres jointly. It is further evident from the endorsement that, unless the land is distinctly reflected or unless the consent/signature of the co-holder (judgment-debtor) is secured, the system does not permit registration of the sale deed. Thus, the difficulty projected by the decree-holder is not legal in nature, but procedural/technical arising out of the digitized registration process. The decree already entitles the decree-holder to obtain the registered sale deed in respect of 1 acre. However, due to the technical impediment in the registration process, execution of the decree has become impracticable unless appropriate directions are issued by this court.

8. It is pertinent to note that, the Learned Counsel for

judgment-debtor has filed vakalath and has submitted no objection to the allowing of this application. The absence of objection from the judgment-debtor further fortifies the case of decree-holder.

9. This court, being an Executing Court, is empowered not only to enforce the decree, but also to remove all ancillary and procedural obstacles that hinder its effective implementation. The inherent powers under Section 151 of CPC can be invoked to ensure that the decree does not become inexecutable on account of technical or administrative hurdles.

10. If the relief sought is not granted, the decree-holder, despite having a valid decree in his favour, would be deprived of the fruits of the decree, which would result in grave injustice. On the other hand, no prejudice will be caused to the judgment-debtor, especially when he has not opposed the application.

11. Therefore, this court is of the considered opinion that, it is just and necessary to permit and direct the judgment-debtor to affix his signature as a consenting witness to facilitate registration

of the sale deed in favour of the decree-holder. Accordingly, Point No.1 is answered in the affirmative.

12. **Point No.2:-** In view of the above discussions, this court proceed to pass the following:-

ORDER

I.A. No.3 filed by the decree-holder under Section 151 of CPC is hereby **allowed**.

The judgment-debtor - Sri.A.Narasimha Murthy, is hereby directed to affix his signature as a consenting witness to the sale deed to be executed in favour of the decree-holder in respect of 1 acre of land in Sy. No.77 of Shettyhalli Village.

No order as to costs.

(Dictated to the Stenographer Grade-I directly on computer, typed by her, corrected and then pronounced by me, in the open court, this the 6th day of April, 2026)

(B.DASARATHA)
XI ADDL. CITY CIVIL & SESSIONS JUDGE
BENGALURU CITY.